

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



October 1, 2018

Honorable James A. Stotler
Judge of the Superior Court
County of Orange
8141 13th Street
Westminster, CA 92683

Re: Nguyen, Van Ngoc
CDC No.: AH4265
Case No.: 97WF1452
Date of Sentence: 4/29/2011

Dear Honorable James A. Stotler:

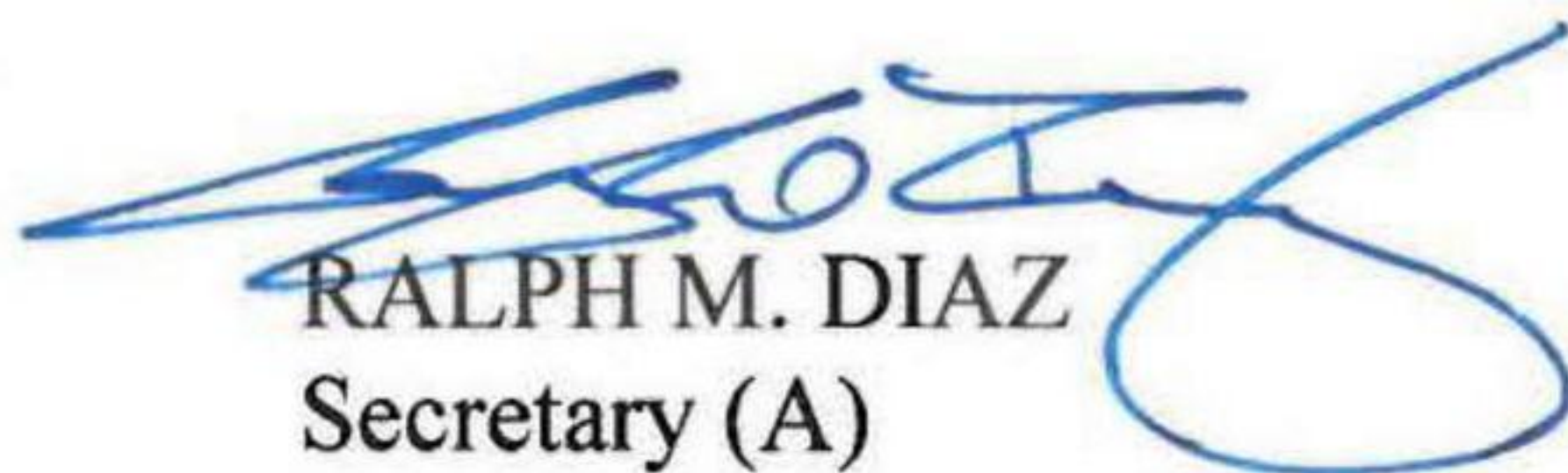
The purpose of this letter is to provide the court with authority to resentence Van Ngoc Nguyen pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Nguyen was sentenced in 2011, and was convicted of section 245, subdivision (b), Assault with semiautoma. The trial court sentenced inmate Nguyen on 4/29/2011. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Nguyen's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Nguyen's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Charles Margines, Orange County Presiding Judge
Orange District Attorney
Private Attorney

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

DNA TAKEN
CR-290 TM

FILED

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: Orange		SUPERIOR COURT OF CALIFORNIA, COUNTY OF ORANGE CENTRAL JUSTICE CENTER	
PEOPLE OF THE STATE OF CALIFORNIA vs DEFENDANT: Nguyen, Van Ngoc ✓		DOB: 01-15-79 ✓	97WF1452 BLG ✓ -A
AKA:			-B
CIM# A11611437			
BOOKING# 2132840 ✓	5-6-11	☐ NOT PRESENT	ADIO OBISC
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGEMENT		☐ AMENDED ABSTRACT	-D M. VILLALOBOS
DATE OF HEARING 04-29-11	DEPT. NO. C35	JUDICIAL OFFICER James A. Stotler ✓	
CLERK Suyin Young	REPORTER Heidi Germaln	PROBATION NO. OR PROBATION OFFICER ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE Scott Simmons		COUNSEL FOR DEFENDANT ☐ APPTD Gary M. Pohlson, Retained Attorney; Robert Viefhaus, Retain	

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment

0 (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME CMMTD	DATE OF CONVICTION (MO/DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (refer to item 5)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS	MOS.
4A	PC	245(b)	Assault with semiautomatic	97	04/29/11			X	U				X			09	00
5A	PC	186.22(a)	Street Terrorism	97	04/29/11			X	M			X				00	08

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed or 'S' for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
4A	186.22(b) PC	03Y00M	12022.7 PC	03Y00M					6 0
3A	12022.5(a) PC	10Y00M	12022.7(b) PC	03Y00M					13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed or 'S' for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Defendant sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two-strikes).
☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed (Paper Commitment). Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: **00** **00**

7. ☒ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: **28** **08**

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 2

PEOPLE OF THE STATE OF CALIFORNIA vs.			
DEFENDANT: Nguyen, Van Ngoc			
97WF1452	-A	-B	-C
			-D

9 FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5 ; \$ _____ per PC 1202.45 suspended unless parole is revoked.
 \$ _____ per PC 1202.44 is now due, probation having been revoked.

Case B: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5 ; \$ _____ per PC 1202.45 suspended unless parole is revoked.
 \$ _____ per PC 1202.44 is now due, probation having been revoked.

Case C: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5 ; \$ _____ per PC 1202.45 suspended unless parole is revoked.
 \$ _____ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5 ; \$ _____ per PC 1202.45 suspended unless parole is revoked.
 \$ _____ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f)

Case A: \$ _____ ☐ Amount to be determined to ☐ Victims(s)* ☐ Restitution Fund

Case B: \$ _____ ☐ Amount to be determined to ☐ Victims(s)* ☐ Restitution Fund

Case C: \$ _____ ☐ Amount to be determined to ☐ Victims(s)* ☐ Restitution Fund

Case D: \$ _____ ☐ Amount to be determined to ☐ Victims(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 11, below.

☐ * Victim name(s), in probation officer's report.

c. Fine(s):

Case A: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$ _____ per PC 1465.8.

e. Criminal Conviction Assessment: \$ _____ per GC 70373.

10. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☒ other (specify)

11. Other orders (specify):

DNA PC 296

Credit for time served pursuant to PC 2933.2.

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	2,890	2,890	0 ☐ 4019 ☐ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
DATE SENTENCE PRONOUNCED		TIME SERVED IN STATE INSTITUTION	
04/29/11		☐ DMH ☐ CDC ☐ CRC	

12. IMMEDIATE SENTENCING:

☐ Probation to prepare and submit post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin:

13. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing.
- b. ☐ at resentencing per decision on appeal.
- c. ☐ after revocation of probation
- d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
- e. ☐ other (specify):

15. The defendant is remanded to the custody of the sheriff

☒ forthwith☐ after 48 hours excluding Saturdays, Sundays, and holidays.To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.☐ other (specify):

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

M. Villalobos

DATE

MAY 06, 2011